

PETITION FOR MANDATORY MISTAKEN-IDENTITY EXPUNGEMENT UNDER C.R.S. SEC.
24-72-702

DISTRICT COURT, JUDICIAL DISTRICT
COUNTY OF, COLORADO
(THE JUDICIAL DISTRICT WHERE THE ARREST OCCURRED, AND ITS COUNTY - the district
court's own office can confirm both)

IN RE THE ARREST OF: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number: (the court assigns it at filing)

PETITION FOR MANDATORY MISTAKEN-IDENTITY EXPUNGEMENT UNDER C.R.S. Sec.
24-72-702
(PARTICIPANT FILING AFTER THE EXPIRED 90-DAY AGENCY DEADLINE - NO FILING FEE
OR OTHER EXPUNGEMENT COST MAY BE CHARGED)

1. The petitioner, Maria-Alejandra O'Shaughnessy-Whitfield, states: a law-enforcement investigation found that the petitioner was arrested because of mistaken identity, and no charges were filed arising from the arrest. Under C.R.S. Sec. 24-72-702, no later than 90 days after that finding the arresting agency was required to petition the district court in the judicial district where the arrest occurred. The agency did not file within that period, and the petitioner therefore files this petition in the same district court, as the statute permits.

2. The petitioner further states:

Petitioner's date of birth: 1968-12-31

Date of the arrest, exactly as the arrest record states it:
.....

Name of the arresting agency:
.....

Identifiers used on the arrest record (the name and any other identifiers under which the arrest was recorded):
.....
.....

Case or incident number of the arrest, from the arrest record:
.....

Date of the agency's mistaken-identity finding, from the finding itself:
.....

Date 90 days after the finding (the agency's expired deadline):

.....

3. Attached to this petition are: the agency's mistaken-identity finding, and proof that no charges were filed arising from the arrest.

4. COMPLETE RECORD-CUSTODIAN LIST. The offices known to the petitioner to hold records of the arrest, taken from the arrest paperwork (list every one; the proposed order directs the custodians on this list):

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5. The petitioner asks the court to enter the proposed mandatory expungement order filed with this petition, directing expungement of the records of the arrest held by each custodian listed above. No filing fee or other expungement cost may be charged for this petition.

DATE SIGNATURE OF PETITIONER

(The petitioner signs and dates this petition personally. Nothing on this page is signed or dated for the petitioner.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

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Colorado 81501-2214

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Route:

obligation:research-decision-route:CO:co_mistaken_identity_expungement:participant_court_petition_after_90_days

PROPOSED ORDER OF MANDATORY EXPUNGEMENT UNDER C.R.S. SEC. 24-72-702

DISTRICT COURT, JUDICIAL DISTRICT
COUNTY OF, COLORADO

IN RE THE ARREST OF: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number:

.....

PROPOSED ORDER

This matter came before the Court on the petition for mandatory mistaken-identity expungement under C.R.S. Sec. 24-72-702. The Court, having considered the petition, the agency's mistaken-identity finding and the proof that no charges were filed,

ORDERS that

(EVERY DECISION ON THIS PAGE IS THE COURT'S. This proposed order travels with the petition for the Court's convenience; nothing on it is completed, decided, signed or dated by the petitioner or by this packet.)

DATED

.....

(The court signs here if, and only if, it grants the petition.)

Route:

obligation:research-decision-route:CO:co_mistaken_identity_expungement:participant_court_petition_after_90_days

FILING INSTRUCTIONS, AND WHAT HAPPENS AFTER THE ORDER

This packet is prepared for expunging a Colorado arrest that a law-enforcement investigation found was a mistaken-identity arrest, where the arresting agency did not petition within its 90-day deadline, under C.R.S. Sec. 24-72-702.

Prepared for: Maria-Alejandra O'Shaughnessy-Whitfield

THE PRECONDITION, STATED EXACTLY

This petition depends on an ACTUAL AGENCY FINDING of mistaken identity, with NO CHARGES FILED, and on the agency's 90-day deadline having EXPIRED. The recorded rule: this route is not a general vehicle for litigating innocence where the agency has never made that determination. If there is no agency finding, the recorded first output is a written request to the agency for investigation and finding - and that request is not in this packet.

WHAT YOU DO, IN ORDER

STEP ONE. Get the agency's mistaken-identity finding and proof that no charges were filed. The arresting agency can tell you where the no-charge status is recorded.

STEP TWO. From the finding's date, establish the date 90 days after it. File only after that date has passed with no agency petition.

STEP THREE. Fill in every dotted blank from the records, including the complete record-custodian list from your arrest paperwork. The proposed order directs the custodians on your list - a custodian you leave off is one the order may never reach.

STEP FOUR. Sign and date the petition yourself.

STEP FIVE. File the petition, its attachments and the unsigned proposed order with the district court of the judicial district where the arrest occurred. Pay nothing: the recorded rule is that no filing fee or other expungement cost may be charged. Ask the district court's office how it accepts filings.

AFTER THE ORDER: DISTRIBUTION AND VERIFICATION

STEP SIX. Ask the office of the district court how certified copies of the order are obtained, and get one for each record custodian on your list.

STEP SEVEN. Deliver a certified copy to each custodian on your list, and keep dated proof of each delivery.

STEP EIGHT. Verify: check with each custodian that its records of the arrest were expunged, and keep each answer. If a custodian does not act on the order, take the order and your proof to a lawyer.

WHEN TO STOP AND GET HELP INSTEAD OF FILING

- the agency has never made a mistaken-identity finding - the recorded first output is a written request to the agency, not this petition;
- charges were filed arising from the arrest;
- the 90-day deadline has not yet expired - until it does, the duty to petition is the agency's;

- the finding or the no-charge status is disputed;
- you are trying to establish innocence without an agency finding;
- any immigration question is involved.

WHAT THIS PACKET IS NOT

This is a prepared set of composed pleadings for one recorded branch of C.R.S. Sec. 24-72-702. It is not a JDF form - the controlling decision records that none was located for this route - and it is not the agency request, not a general innocence proceeding, not legal advice, not filed for you, and not a promise that the court will act. No fee is asked anywhere in it.

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